

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
THOMAS TORRES,

Plaintiff designates

Bronx County as the place of trial

Plaintiff,

The basis of the venue is where the
tort arose

-against-

CITY OF NEW YORK, Individually and in their capacities
as New York City Police Officers, JUAN GOMEZ, and
JOHN or JANE DOE 1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 5, 2019



SIM & DEPAOLA, LLP
BY: Samuel DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. JUAN GOMEZ OF THE 52 PCT.
SHIELD #27475, TAX ID #953916**

3016 Webster Avenue
Bronx, New York 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
THOMAS TORRES,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, INDIVIDUALLY AND IN
THEIR OFFICIAL CAPACITY AS NEW YORK CITY
POLICE OFFICERS, JUAN GOMEZ, and JOHN or JANE
DOE 1-10,

Defendants.
-----X

Plaintiff, THOMAS TORRES, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a March 1, 2017 incident, in which defendants, acting under color of state law, unlawfully arrested and detained Mr. Torres. Mr. Torres was subsequently charged with Criminal Possession of a Controlled Substance in the Third Degree, Fourth Degree and Seventh Degree. As a result, Mr. Torres was deprived of his liberty and suffered physical and psychological injuries. Mr. Torres was wrongfully detained for approximately six (6) days. He was maliciously prosecuted until the dismissal of all charges on January 19, 2018 by the Hon. Test of the Bronx County Supreme Court.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff THOMAS TORRES (“Mr. Torres”) resides at 2710 Morris Avenue, Bronx County, State of New York.
4. The Defendant City of New York (or “the City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officer Juan Gomez (“Gomez”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Gomez was, at the times relevant herein, a Police Officer under Shield #27475, Tax ID #953916 in the 52nd Precinct, located at 3016 Webster Avenue, Bronx, New York 10467. Defendant Gomez is being sued in his individual and official capacities.
8. Defendant John Doe 1 is the male NYPD officer or detective who is believed to Defendant Gomez’s partner at the relevant times mentioned herein. Defendant John Doe 1 was present with Defendant Gomez when Defendant Gomez first encountered

Plaintiff. Defendant John Doe 1's true name and identity is currently unknown to Plaintiff, but is known to defendants. It is believed that Defendant John Doe 1 is assigned to the 52nd Precinct, located at 3016 Webster Avenue, Bronx, New York 10467. Defendant John Doe 1 is being sued in his individual and official capacities.

9. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1 through 10, as such knowledge is within the exclusive possession of defendants.
10. At all times relevant herein, Defendants John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1 through 10 are being sued in their individual and official capacities.
11. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.

15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On March 1, 2017, at approximately 5:45 a.m., Mr. Torres was inside a motor vehicle, in front of the apartment building residence, addressed 2710 Morris Avenue, Bronx, New York.
17. Mr. Torres was moving three (3) of his neighbors' cars that morning for alternate side parking, something he does regularly for them as a neighborly favor.
18. After moving one of the cars to another parking spot, Mr. Torres fell asleep in the vehicle due to his sleep apnea condition.
19. Mr. Torres was awoken by two male plain clothes NYPD officers or detectives (Defendants Gomez and John Doe 1), who opened the car door without consent or a valid warrant.
20. Defendants Gomez and John Doe 1 then began to illegally question Mr. Torres as to whether he had anything to hide, such as weapons or drugs.
21. Mr. Torres responded that he did not.
22. Defendants Gomez and John Doe 1 then illegally searched Mr. Torres' person.
23. Defendants Gomez and John Doe 1 did not have reasonable suspicion or probable cause to stop, question, frisk, search or seize Mr. Torres, as there was no indicia of criminal activity present.
24. Mr. Torres was committing no crimes or violations of the law by falling asleep momentarily in a lawfully parked motor vehicle in front his residence.

25. Defendants Gomez and John Doe 1 then forcibly removed Mr. Torres from the vehicle and proceeded to illegally search the vehicle.
26. Defendants Gomez and John Doe 1 did not find anything illegal on Mr. Torres' person or in the vehicle he was inside.
27. Mr. Torres was committing no crimes or violations of the law.
28. Defendants Gomez and John Doe 1 did not observe Mr. Torres committing any crimes or violations of the law.
29. After illegally searching the vehicle, Gomez and John Doe 1 illegally searched Mr. Torres again, recovering three sets of keys for the cars he was moving that morning.
30. ed then illegally searched the two additional cars.
31. Upon searching the two other cars, Defendants Gomez and John Doe 1 claimed that they recovered drugs.
32. Defendants Gomez and John Doe 1 then directed Mr. Torres to have his wife come outside to pick up his personal property, because they were placing him under arrest.
33. After Mr. Torres' retrieved his personal properties, Defendants Gomez and John Doe 1 put Mr. Torres in their vehicle and drove him to 233 Baychester Ave, Bronx, New York.
34. Upon arriving at 233 Baychester Ave., Defendants Gomez and John Doe 1 removed Mr. Torres from the vehicle and proceeded to illegally question him.
35. Defendants Gomez and John Doe 1 told Mr. Torres that if he could find them a firearm, they would not charge him for the drugs they allegedly recovered from the other vehicle.

36. Mr. Torres responded that he could not provide what the defendants are looking for, because he is a law-abiding citizen.
37. Defendants Gomez and John Doe 1 then proceeded to punch, choke, push and twist Mr. Torres's arm until he agreed to their demands.
38. Mr. Torres then informed Defendants Gomez and John Doe 1 that he would ask an acquaintance of his.
39. Defendants Gomez and John Doe 1 took Mr. Torres' phone, called Mr. Torres' acquaintance and told him that they would release Mr. Torres if he dropped off a firearm at a certain location.
40. Ostensibly, the individual agreed and dropped of the firearm at the agreed upon location.
41. Defendants Gomez and John Doe 1 then agreed to let Mr. Torres go home.
42. As Mr. Torres was about to get into a taxi, Defendants Gomez and John Doe 1 forcibly grabbed him, preventing Mr. Torres from entering the taxi, and told him they are taking him to another location.
43. Defendants Gomez and John Doe 1 then drove Mr. Torres against his will to the vicinity of 3132 Decatur Street, Bronx, New York and removed him from their vehicle.
44. Defendants Gomez and John Doe 1 then attempted to hand Mr. Torres a firearm, ostensibly the same one that was dropped off, which Mr. Torres refused to touch or take possession of.
45. Defendants Gomez or John Doe 1 then threw the firearm at Mr. Torres.
46. Mr. Torres refused to catch it, causing the firearm to fall to the ground.

47. Uniformed officers, including John Does 2 and 3, observed the firearm being thrown and ordered everyone to put their hands up.
48. Defendants Gomez and John Doe 1 identified themselves as NYPD officers or detectives.
49. Mr. Torres was then rear handcuffed in an excessively tight fashion by Defendant Gomez and John Does 1,2 and 3, which caused severe and permanent injury to Mr. Torres' wrists.
50. After being handcuffed by Defendants Gomez and John Does 1, 2 and 3, Mr. Torres requested medical attention due to the injuries he sustained from Defendants Gomez' and John Doe 1's use of excessive force.
51. At no time did defendants possess a valid arrest warrant for Mr. Torres.
52. Mr. Torres was denied medical attention and was taken to the 52nd Precinct.
53. Once at the precinct, Mr. Torres again requested medical attention.
54. Defendant Gomez informed Mr. Torres that he would be taken for medical treatment after he was processed.
55. Mr. Torres then fell down on his knees, informed Defendant Gomez that he could not breathe and began to vomit.
56. An ambulance was called and Mr. Torres was transported to the hospital for treatment.
57. Mr. Torres was in police custody for approximately six (6) days in North Central Bronx Hospital, handcuffed to a bed.
58. Mr. Torres had a sonogram performed and was informed that his breathing difficulty was due to his lungs being swollen.

59. As a result of defendants' use of extreme excessive force, Mr. Torres sustained severe and injuries all about his body, including, but not limited to, his lungs, chest, stomach, arms and wrists.
60. After being released from the hospital, Mr. Torres was taken back to the precinct and then to Central Booking.
61. The Defendants had no probable cause or reasonable suspicion to arrest Mr. Torres, as Mr. Torres had not committed any crime or violation of the law.
62. Defendants Gomez and John Doe 1 falsely alleged they found drugs, when they knew such claims to be untrue and complete fabrications, as Defendants Gomez and John Doe never recovered any crack cocaine from the vehicle as they falsely claimed.
63. Mr. Torres was never in possession of any illegal substances.
64. As a result of defendants Gomez and John Doe 1's knowingly and intentionally false statements and allegations, Mr. Torres was falsely arrested under arrest number B17611476.
65. Defendant Gomez was Mr. Torres's arresting officer and signed Mr. Torres' criminal court complaint.
66. Defendant Gomez falsely arrested Plaintiff, claiming that he was in criminal possession of crack cocaine that Defendant Gomez had personally observed in a car.
67. Defendant Gomez never Mr. Torres is the vehicle where the alleged crack cocaine was allegedly recovered.
68. Defendant Gomez was fully aware that Mr. Torres was not in possession of any crack cocaine, but knowingly and intentionally chose to falsely state that Mr. Torres was in possession of crack cocaine.

69. Mr. Torres was never in actual, constructive or statutory possession of any contraband, illicit drugs or crack cocaine.
70. Mr. Torres had multiple assaults and batteries committed to his person including but not limited to being choked, punched and pushed forcefully in the stomach and chest and being placed in handcuffs too tightly.
71. Mr. Torres was subjected to illegal strip searches with cavity inspections at the police precinct by Defendant Gomez or the direction of Defendant Gomez.
72. Mr. Torres was fingerprinted, photographed, eye scanned and subjected to two illegal strip-searches with cavity inspections by Defendant Gomez or at the direction of Defendant Gomez.
73. Defendants, including Gomez, never observed Mr. Torres secret any contraband within his person, a fact substantiated by the fruitless strip-searches.
74. Mr. Torres was released from custody on or about March 7, 2017.
75. Defendants, including Gomez, intentionally provided said false information to the Bronx County District Attorney's Office, namely that Mr. Torres was in possession of crack cocaine, so that a criminal prosecution would be initiated against Mr. Torres.
76. Defendants, including Gomez and John Doe 1, never observed Mr. Torres in possession of any crack cocaine or anything else illegal.
77. Mr. Torres was arraigned and formally charged with Possession of a Controlled Substance in the Third Degree, Fourth Degree and Seventh Degree.
78. While Plaintiff was unlawfully detained, Defendants, including Gomez, acting with malice, conveyed the aforementioned false, misleading and incomplete information to

prosecutors in order to have Plaintiff prosecuted for Possession of a Controlled Substance in the Third, Fourth and Seventh Degrees.

79. Defendants, including Gomez, suppressed evidence and engaged in conduct undertaken in bad faith, including, but not limited to, fabricating false accounts that Mr. Torres was in possession of crack cocaine, performing illegal searches of vehicles and Mr. Torres' person without warrants and coercing Mr. Torres into making false statements through the use of unlawful and excessive force.
80. Defendant Gomez committed perjury by knowingly offering false statements contained within the Mr. Torres' criminal court complaint as true and signing and attesting to the truth of allegations he knew to be false.
81. Defendant Gomez procured the criminal indictment of Mr. Torres through the use of perjury, fraud and the suppression of evidence, namely the offering of knowingly false statements that Defendant Gomez observed Mr. Torres to be in possession of crack cocaine and that Mr. Torres admitted to possessing crack cocaine in a vehicle.
82. Mr. Torres never possessed any crack cocaine and never admitted to possessing any crack cocaine or that crack cocaine was in a vehicle.
83. Defendant Gomez perjured himself when he testified before a grand jury and claimed that Mr. Torres was in possession of crack cocaine and that Mr. Torres admitted to possessing said crack cocaine in the vehicle.
84. Defendant Gomez arrested and caused a criminal prosecution to be initiated against Mr. Torres to compel Mr. Torres to provide information relating to other crimes.

85. Defendant Gomez continued to falsely accuse and abuse the legal process, in an effort to punish Mr. Torres for failing to provide the information that Defendant Gomez wanted, and for no other reason.
86. Defendants have displayed a pattern and practice of falsely arresting individuals who committing no crimes or violations of the law, such as Mr. Torres.
87. During all of the events described, the Defendants, including Gomez, acted maliciously and with intent to injure Plaintiff.
88. Defendant Gomez was fully aware that there was no probable cause to believe a prosecution would succeed against Mr. Torres, because Defendant Gomez knew that Mr. Torres was never in possession of any crack cocaine and that he was an innocent man.
89. At all times relevant hereto, Defendants, including Gomez and John Does 1,2 and 3, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
90. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause.
91. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have failed to provide adequate training in the identification of probable cause or reasonable suspicion.
92. The instant arrest of Plaintiffs' without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced

training and supervision is obvious due to the clear lack of any probable cause to arrest and prosecute Plaintiff.

93. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of Defendants.
94. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that Defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Mr. Torres.
95. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

96. The above paragraphs are here incorporated by reference as though fully set forth.
97. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
98. Plaintiff was conscious of his confinement.

99. Plaintiff did not consent to his confinement.
100. Plaintiff's arrest and false imprisonment was not otherwise privileged.
101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
102. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
103. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

104. The above paragraphs are here incorporated by reference as though fully set forth.
105. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
106. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
107. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
108. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
109. By reason of the above, the amount of damages sought on this cause of action

exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth.
111. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
112. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
113. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
114. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
115. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

116. The above paragraphs are here incorporated by reference as though fully set forth.
117. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
118. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

119. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

120. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

121. The above paragraphs are here incorporated by reference as though fully set forth.

122. Defendants initiated the prosecution against Plaintiff.

123. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

124. Defendants acted with malice.

125. The prosecution was terminated in Plaintiff's favor when the criminal charge was dismissed and sealed.

126. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

128. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

129. The above paragraphs are here incorporated by reference as though fully set forth.
130. Defendants initiated the prosecution against Plaintiff.
131. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
132. Defendants acted with malice.
133. The prosecution was terminated in Plaintiff's favor when he all charges were dismissed and sealed.
134. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
135. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
136. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

137. The above paragraphs are here incorporated by reference as though fully set forth.
138. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
139. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
140. Defendants intended to inflict substantial harm upon Plaintiff.

141. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
142. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
144. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

145. The above paragraphs are here incorporated by reference as though fully set forth.
146. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
147. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
148. Defendants intended to inflict substantial harm upon Plaintiff.
149. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
150. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

152. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

153. The above paragraphs are here incorporated by reference as though fully set forth.

154. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

155. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

157. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

158. The above paragraphs are here incorporated by reference as though fully set forth.

159. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
160. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
161. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
162. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
163. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION
Negligent Hiring, Retention and Supervision Under
New York State Law

164. The above paragraphs are here incorporated by reference as though fully set forth.
165. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
166. Defendant City breached that duty of care.
167. Defendant City placed defendants in a position where they could inflict foreseeable harm.
168. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States

Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

169. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

170. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

171. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

172. The above paragraphs are here incorporated by reference as though fully set forth.

173. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.

174. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

175. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City's employees.

176. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced supervision and training is

obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City's employees.

177. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

178. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

179. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
April 5, 2019



SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff
4240 Bell Blvd., Suite 500
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 5, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

THOMAS TORRES,

Plaintiff,

-against-

CITY OF NEW YORK, INDIVIDUALLY AND IN THEIR OFFICIAL CAPACITY AS NEW
YORK CITY POLICE OFFICERS, JUAN GOMEZ, and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: SAMUEL C. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for